

HOUSE BILL 1311

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 63 and Title 68, relative to health related
licensure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-1-105, is amended by deleting the section.

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

Notwithstanding any law, for an agency of state government created pursuant to this title or title 68, chapter 24, 29, or 140, three (3) or more members constitute a quorum for all contested case hearings and disciplinary matters, and the presiding officer of the agency is authorized, when necessary, to split the agency into panels of three (3) or more, each to conduct contested case hearings or disciplinary matters. A majority vote of the members present on any duly constituted panel is required to authorize an agency to take action in disciplinary matters and contested case hearings. The presiding officer of the agency is authorized to appoint members of the agency's governing body to serve on the panels, as the presiding officer deems necessary, regardless of the grand division from which the appointed member was chosen or the member's status as licensee of the agency or citizen member. The existence of a citizen member of the agency's governing body creates no rights in an individual concerning the composition of a panel in a disciplinary matter or contested case hearing.

Notwithstanding § 4-5-314(e), if a member of a panel is unable to carry out the member's duties prior to the time a final order is rendered, then a new member must only be

appointed to the panel if the panel does not have enough members remaining to constitute a quorum required by this section for contested case hearings or disciplinary matters. If a new member is appointed to the panel, then the member shall use the existing record and may conduct further proceedings as is necessary in the interest of justice. A decision by the panel is deemed an order of the board.

SECTION 3. Tennessee Code Annotated, Section 63-1-117, is amended by deleting subsection (a) and substituting:

(a) Notwithstanding §§ 63-2-101(b), 68-11-1502, and 68-11-1503, and regardless of any express or implied contracts, agreements, or covenants of confidentiality based upon those sections, healthcare providers and facilities licensed pursuant to this title or title 68 shall make their medical and practice records, including patient billing records, available for inspection and copying by the department of health or its representatives, designees, or employees within ten (10) business days of the request. Healthcare providers and facilities that utilize electronic medical records shall cause a copy of requested medical records to be provided to the department of health or its representatives, designees, or employees within ten (10) business days of the request. Any records produced pursuant to this section must be produced in accordance with § 63-2-102(c). Healthcare providers and facilities are required to provide the medical and practice records only upon receipt of one (1) or both of the following:

- (1) The written authorization for release signed by the patient or the patient's legal representative; or
- (2) The written request made by the department of health investigators, inspectors, or surveyors who are performing authorized investigations, inspections, or surveys of facilities or individuals licensed pursuant to this title or

title 68 based on a complaint filed with the department or an inspection or survey required by state or federal law. The written request must contain the nature of the violation, the applicable laws and rules that may have been violated, and the specific date by which production of the records is required. The written request must be made in good faith and must be related to the complaint, inspection, or survey. The obligation to provide access and copies of records is not limited to the subject of the complaint, inspection, or survey, but rather to any healthcare provider and facility licensed pursuant to this title or title 68 who receives such a request.

SECTION 4. Tennessee Code Annotated, Section 63-1-117(g), is amended by deleting the subsection and substituting:

(g) After the filing of formal disciplinary charges against the provider pursuant to § 4-5-307, only the materials and documents upon which the charges are based may be disclosed as a public record or in response to a subpoena, but not the complainant's identifying information, identifying information of a witness who requests anonymity, patient's identifying information, patient's medical records, or investigator's report, which may be produced only in response to a subpoena from a law enforcement agency. If an investigation results in an outcome that does not involve the filing of a formal disciplinary charge as described in § 4-5-307 against the provider, then investigative materials may only be disclosed in accordance with subsection (f).

SECTION 5. Tennessee Code Annotated, Section 63-26-115, is amended by deleting subsection (a) and redesignating the remaining subsections, and is further amended by deleting the language "subdivision (c)(2)" and substituting "subdivision (b)(2)".

SECTION 6. Tennessee Code Annotated, Section 63-27-105, is amended by deleting subdivision (b)(1) and substituting:

(1) A person seeking licensure as a registered respiratory therapist or a certified respiratory therapist shall:

(A) Be at least eighteen (18) years of age and of good moral character;

(B) Pay the required fees set by the board;

(C) Provide evidence satisfactory to the board that the person has successfully completed academic and clinical preparation in a respiratory care educational program supported, approved, or otherwise recognized by the board or by the National Board for Respiratory Care (NBRC); and

(D) Meet the following requirements:

(i) A person applying for licensure as a certified respiratory therapist shall provide evidence satisfactory to the board that the person has obtained the credential "certified respiratory therapist" (CRT) or the credential "certified respiratory therapy technician" (CRTT) from the NBRC; or

(ii) A person applying for licensure as a registered respiratory therapist shall provide evidence satisfactory to the board that the person has obtained the credential "registered respiratory therapist" (RRT) from the NBRC.

SECTION 7. Tennessee Code Annotated, Section 63-27-106(a), is amended by deleting the first sentence and substituting:

The knowledge and skills for performing the functions of a registered respiratory therapist must be acquired by academic and clinical preparation in a respiratory care program supported, approved, or otherwise recognized by the board or by the National Board for Respiratory Care.

SECTION 8. Tennessee Code Annotated, Section 63-27-107(a), is amended by deleting the first sentence and substituting:

The knowledge and skills for performing the functions of a certified respiratory therapist must be acquired by academic and clinical preparation in a respiratory care program supported, approved, or otherwise recognized by the board or by the National Board for Respiratory Care.

SECTION 9. This act takes effect upon becoming a law, the public welfare requiring it.